

PLJ 2019 Lahore 53 (DB)

Present: ABID AZIZ SHEIKH AND JAWAD HASSAN, JJ.

**GOVERNMENT OF PUNJAB through Secretary Health Department, Lahore and
another--Appellants**

versus

Syed MOHSIN ALI--Respondent

ICA No. 32 of 2014 in W.P. No. 10070 of 2012, heard on 19.4.2017.

Constitution of Pakistan, 1973--

---Art. 199--Constitutional Petition--Direction was issued to consider respondent's case for regularization--Appellants did not regularize services of respondent on ground that this certificate of passing middle class was found bogus--Only question requires determination is whether respondent passed his middle-class exam. Or not--Executive District Officer (EDO) *vide* his letter verified school leaving certificate of respondent according to which he passed his 8th class examination--Further controller of examination letter also confirmed that respondent appeared in 9th class examination against Roll No--No illegality or infirmity--Appeal dismissed. [Pp. 54 & 55] A & B

Mr. Aziz-ur-Rehman Khan, AAG for Appellants.

Syed Riaz-ul-Hassan Gillani, Advocate for Respondent.

Date of hearing: 19.4.2017.

ORDER

Through this appeal, the appellants have challenged the order dated 23.12.2013, whereby constitutional petition filed by respondent was allowed and direction was issued to consider respondent's case for regularization.

2. Brief facts are that respondent appointed on daily wages w.e.f. 1.11.2007 as Security Guard. In pursuance to Government Policy, respondent alongwith other employees applied for his regularization, however, his case was not considered. The respondent being aggrieved filed Writ Petition No. 13073/2010 in which direction was issued to regularize his services. In appeal i.e. ICA No. 09/2011 filed by department, the learned Division Bench of this Court again issued direction to regularize those employees, who fulfill qualification and also within prescribe age limit. The appellants however did not regularize the services of the respondent on the ground that his certificate of passing middle class was found bogus. The respondent being aggrieved again filed Writ Petition No. 10070/2012 which was allowed through impugned order dated 23.12.2013, hence this appeal.

3. Learned counsel for the appellants argued that certificate of respondent to pass middle class was found bogus through verification letter dated 12.01.2012, therefore, he could not be regularized. Submits that aforesaid aspect of the matter was not properly appreciated.

4. Learned counsel for the respondent submits that recently school leaving certificate of the appellant was again verified by EDO Education on 24.8.2015 and same was found to be correct. He further submits that letter dated 11.6.2013 issued by Controller Examination also

verified this fact that respondent appeared in 09th class exams, which proves that he passed 08th class exams as well.

5. We have heard learned counsel for the parties and perused the record. The only question requires determination is whether respondent passed his middle class exam or not. The Executive District Officer (EDO) Multan *vide* his letter dated 24.08.2015 verified the school leaving certificate of the respondent according to which he passed his 8th class examination. Further Controller of Examination

letter dated 11.06.2013 also confirmed that respondent appeared in 09th class examination against Roll No. 180283 hence there is valid presumption that he passed 08th class examination before appearing for 9th class examination.

6. In view of above discussion, no illegality or infirmity is found in the impugned order passed by learned Single Bench, therefore, this appeal has no merit which is accordingly **dismissed**.

(K.Q.B.) Appeal dismissed